

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PELTON INTERACTIVE, INC., *Complainant*

v.

INTERNATIONAL LLC, *Respondent*.

DOCKET NO. 24-19

Served: August 26, 2025

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

ORDER ON PELTON'S MOTION FOR CLARIFICATION OF SCHEDULING ORDER

On August 25, 2025, Peloton's Motion for Clarification of Scheduling Order was filed. (Dkt. 86.) The motion seeks clarification of the Order on Respondent's Second Motion for Modification of Scheduling Order entered August 22, 2025, which extended the date for Respondent's opposition brief from September 11, 2025, to September 15, 2025. The order did not modify the deadline for Complainant to file its reply brief. (Dkt. 85.)

Complainant now requests that the deadline for filing its reply brief be extended from the current deadline of September 25, 2025, to either September 29, 2025, or October 2, 2025. Complainant states that Respondent consents to an extension to September 29, 2025, but opposes an extension beyond that date.

Complainant does not assert any basis for extending its reply brief deadline beyond the three days afforded Respondent in the prior order. Fundamental fairness requires that a commensurate extension be granted to Complainant, but in the absence of good cause further extension is not warranted.

It is **ORDERED** that Peloton's Motion for Clarification of Scheduling Order is **GRANTED**. The deadline to file Complainant's Reply Brief is extended to **September 29, 2025**.

MARY A. HERVEY -S

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HERVEY -S
Date: 2025.08.26 12:25:52 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge